

Court No. - 21

Case :- WRIT - C No. - 37523 of 2022

Petitioner :- Chandrabhan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vinod Kumar Kushwaha

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Jayant Banerji,J.

The petitioner has challenged the recovery certificate dated 4.8.2022 issued by respondent no. 3- Executive Engineer, Electricity Distribution Division, Mainpuri and to release the Saving A/C No. 32363760494 at State Bank of India, Branch Ghiror, district Mainpuri from attachment.

The record reveals that the recovery has been issued on the basis of a bill issued to the petitioner on 18.2.2022. The case of the petitioner is that he has already deposited considerable sum and whatever is balance would be deposited by him as soon as the respondent informs him about the amount due after adjusting the amount already deposited.

Learned counsel appearing on behalf of Electricity Department states that respondent no. 4 is competent authority to examine the above issue under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. He also points out that the petitioner has already approached the Consumer Forum by filing Complaint No. 167 of 2022 for same cause of action.

Counsel for the petitioner states that he will get the complaint dismissed as not pressed and prays that a direction be issued to the respondent no. 4 to decide the claim of the petitioner so that the balance amount, if any, is paid.

Having regard to the submissions made, we **dispose of** the instant petition by providing that the petitioner shall file objection along with documentary evidence before respondent no. 4 within one week from today and in which event, the same shall be decided by respondent no. 4 within next one week. Respondent no. 4 will give due credit of the amount, if any, already deposited. As soon as the petitioner deposits the amount as may be intimated to him by respondent no. 4 after considering the documentary evidence that is filed by the petitioner along with his objection, the attachment of the account will stand lifted.

The petitioner will get his complaint filed before the Consumer Forum withdrawn and evidence in this behalf shall also be filed before respondent no. 4 along with the objection.

Until the objections are decided, no amount shall be withdrawn from the attached account of the petitioner.

Order Date :- 21.12.2022

A. V. Singh

(Jayant Banerji, J.) (Manoj Kumar Gupta, J.)